

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                 |                           |                                                                                                                                                                                                                                  |
|--------------------------------------------------|-------------------------------------------------|---------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Rolando Vasquez                 | Team:<br>Squad #05                              | CCRB Case #:<br>201802373 | <input checked="" type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 03/20/2018 2:39 AM  | Location of Incident:<br>1955 University Avenue | 18 Mo. SOL<br>9/20/2019   | Precinct:<br>46                                                                                                                                                                                                                  |
| Date/Time CV Reported<br>Tue, 03/20/2018 8:30 AM | CV Reported At:<br>IAB                          | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Mon, 03/26/2018 11:05 AM                                                                                                                                                                           |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |

| Subject Officer(s)  | Shield | TaxID  | Command |
|---------------------|--------|--------|---------|
| 1. POM Alberto Lara | 20161  | 958792 | 046 PCT |
| 2. POM Adrian Ramon | 21661  | 952142 | 046 PCT |

| Officer(s)           | Allegation                                                                      | Investigator Recommendation |
|----------------------|---------------------------------------------------------------------------------|-----------------------------|
| A . POM Alberto Lara | Force: Police Officer Alberto Lara pointed his gun at § 87(2)(b)                | A . Exonerated              |
| B . POM Adrian Ramon | Discourtesy: Police Officer Adrian Ramon spoke discourteously to § 87(2)(b)     | B . Unsubstantiated         |
| C . POM Alberto Lara | Force: Police Officer Alberto Lara used physical force against § 87(2)(b)       | C . Unfounded               |
| D . POM Adrian Ramon | Abuse: Police Officer Adrian Ramon threatened § 87(2)(b) with the use of force. | D . Unsubstantiated         |

### Case Summary

On March 20, 2018, § 87(2)(b) made FADO allegations against officers while in police custody. Sergeant Chikei Ian reported the incident to IAB by phone on March 20, 2018. The complaint was received by the CCRB March 26, 2018, under IAB Log #2018-11153.

On March 20, 2018, at approximately 2:39 a.m., § 87(2)(b) was driving in the vicinity of 1955 University Avenue in the Bronx. § 87(2)(b) was involved in a motor vehicle accident with another driver. Following the accident, § 87(2)(b) was stopped by Police Officer Alberto Lara and Police Officer Adrian Ramon from the 46<sup>th</sup> Precinct. PO Lara allegedly pointed his gun at § 87(2)(b) (**Allegation A: Force, exonerated**). PO Ramon allegedly spoke discourteously to § 87(2)(b) (**Allegation B: Discourtesy, unsubstantiated**). PO Lara allegedly punched § 87(2)(b) repeatedly (**Allegation C: Force, unfounded**). PO Ramon allegedly threatened to use physical force against § 87(2)(b) (**Allegation D: Abuse of Authority, unsubstantiated**).

This incident resulted in the arrest of § 87(2)(b)

No video was obtained of this incident.

### Findings and Recommendations

**Allegation A – Force: Police Officer Alberto Lara pointed his gun at § 87(2)(b)**

**Allegation B – Discourtesy: Police Officer Adrian Ramon spoke discourteously to § 87(2)(b)**

§ 87(2)(b) testified that he was involved in a motor vehicle accident, engaged in a verbal dispute with the other driver, and drove away from the accident location when the driver called the police (BR01). § 87(2)(b)'s vehicle was cut off by a police car down the street. PO Lara approached the driver's side of § 87(2)(b)'s vehicle with his gun pointed at him. PO Ramon told § 87(2)(b) "Get the fuck out of the car."

Event documents and the associated 911 recordings for this incident revealed a radio run for an assault in progress with a weapon (BR02-04). A male caller who provided his name and phone number reported that his vehicle was struck by another vehicle, and that the driver threatened him with a wrench. The police radio communications recording revealed that the dispatcher reported to officers that there was an assault in progress at the location with a weapon and the suspect was a Hispanic male with a wrench (BR05).

PO Ramon and PO Lara provided the following § 87(2)(g) testimony (BR06-07). The officers responded to the location in response to the aforementioned radio run. § 87(2)(b) fled from the location in his vehicle when the officers arrived. § 87(2)(b) did not immediately come to a stop when the officers tried to pull him over and was ultimately stopped by PO Ramon cutting off § 87(2)(b)'s vehicle. The officers approached § 87(2)(b) and instructed him to exit his vehicle. § 87(2)(b) refused to exit.

PO Lara's testimony provided the following additional information. As PO Lara approached the stopped vehicle, § 87(2)(b) leaned his body to his right and reached toward the vicinity of the center console with his right hand. PO Lara drew his gun and pointed it at § 87(2)(b) because he

was fearful for his safety given § 87(2)(b)'s flight from the scene of an accident, the reported assault with a weapon, and § 87(2)(b)'s reaching movement in the car. PO Lara told § 87(2)(b) "Do not reach for anything. Let me see your hands." § 87(2)(b) put his hands on the steering wheel and PO Lara holstered his gun. PO Lara told § 87(2)(b) to get out of the car but § 87(2)(b) remained motionless.

PO Lara could not recall if PO Ramon issued § 87(2)(b) any commands or if he used any profanity toward him.

PO Ramon testified that § 87(2)(b)'s vehicle was stopped and he arrived next to PO Lara after a few seconds because he had to put the police car in park. § 87(2)(b) was screaming, "Why are you stopping me?" PO Lara told § 87(2)(b) to get out of the car and he did not exit. PO Ramon told § 87(2)(b) to get out of the car to speak with them. § 87(2)(b) said, "This is bullshit...Nah I'm not coming out of the car." PO Ramon and PO Lara repeatedly told § 87(2)(b) to get out of the car but he refused to comply. PO Ramon denied that he used any profanity told § 87(2)(b).

The decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present. NYPD Patrol Guide Procedure, 221-01 (BR08).

§ 87(2)(g)  
Therefore it is recommended that  
**Allegation A** be closed as **exonerated**.

§ 87(2)(g)  
Therefore it is recommended that **Allegation B** be closed as **unsubstantiated**.

**Allegation C – Force: Police Officer Alberto Lara used physical force against § 87(2)(b)**

**Allegation D – Abuse of Authority: Police Officer Adrian Ramon threatened § 87(2)(b) with the use of force.**

§ 87(2)(b) testified that PO Lara opened his car door, grabbed him by his left arm, and pulled him toward him. § 87(2)(b) did not make any movements before PO Lara grabbed him. PO Lara immediately punched § 87(2)(b) at least six times on his right eye and on the back of his head. § 87(2)(b) pulled his body away and tried covering his head with his arms to protect himself. PO Ramon said, "If you keep resisting I'm going to Tase you." PO Lara stopped punching § 87(2)(b). § 87(2)(b) pulled him out of the car, and handcuffed him. § 87(2)(b) reported that he had a bruised right eye and a scratch on the back of his head due to being punched. § 87(2)(b) requested EMS from the stationhouse because he had a headache. § 87(2)(b) also sought treatment for the injury to his eye at § 87(2)(b) after he was released from police custody.

The FDNY responded to a request stating that no ambulance call report was prepared for this incident because § 87(2)(b) refused medical aid (BR09). The investigation obtained medical records from § 87(2)(b) § 87(2)(a) PHL § 18(6)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

In his arrest photo, § 87(2)(b)'s right eye is closed and the area surrounding his eye is darkened (BR11). Photos of § 87(2)(b)'s face, which showed the same abnormality of his right eye were attached to a TRI report about this incident (BR12). The TRI report notes that § 87(2)(b) alleged he was punched six times in the back of the head (BR13).

PO Lara prepared a Medical Treatment of Prisoner Report, signed by § 87(2)(b) which reflected that § 87(2)(b) had an old injury to his right eye, old scratches behind his right ear, and that he refused medical attention (BR14). Command logs from the 45<sup>th</sup> Precinct stationhouse and 46<sup>th</sup> Precinct stationhouse where § 87(2)(b) was processed noted a pre-existing injury to § 87(2)(b)'s eye (BR15-16).

PO Lara denied that he ever punched § 87(2)(b). He testified that he approached § 87(2)(b)'s vehicle and told him to get out of the car. § 87(2)(b) remained seated with his hands on the steering wheel. PO Lara opened the driver's side door and pulled on § 87(2)(b)'s left arm, but he was unable to pull him out because § 87(2)(b) maintained his hold on the steering wheel. PO Lara started trying to pry § 87(2)(b)'s hand loose from the steering wheel while PO Ramon started pulling on § 87(2)(b)'s arm. PO Ramon took out his Taser. PO Lara did not remember if PO Ramon said anything to § 87(2)(b) about using the Taser against him. PO Lara surmised that § 87(2)(b) saw the Taser because § 87(2)(b) looked at PO Ramon, immediately released the steering wheel, and was placed into custody without further incident.

PO Lara noted that § 87(2)(b)'s right eye was already bruised when he arrested him. § 87(2)(b) was taken to the 45<sup>th</sup> Precinct stationhouse to be assessed at the Intoxicated Driver Testing Unit and was ultimately processed at the 46<sup>th</sup> Precinct stationhouse. While PO Lara was processing § 87(2)(b) he asked § 87(2)(b) how he sustained the injury to his right eye. § 87(2)(b) told him that he was involved in a fight about two weeks prior.

PO Ramon denied that he or PO Lara ever punched § 87(2)(b). He testified that § 87(2)(b) verbally signaled he was not going to exit the vehicle with statements such as, "I'm not coming out of the car. This is bullshit." PO Lara tried opening the driver's side door but § 87(2)(b) was holding it shut with his left hand. PO Lara and PO Ramon both tried pulling § 87(2)(b)'s left arm loose from the door. After about a minute of issuing verbal commands and struggling with the door, § 87(2)(b) abruptly reached toward the ignition and then underneath his seat. Fearing that § 87(2)(b) was going to drive off or reach for a weapon, PO Ramon drew and pointed his Taser at § 87(2)(b). PO Ramon said, "Get out of the car or you're going to get Tased." The officers then pulled § 87(2)(b) out of the car.

A conducted electrical weapon (CEW) should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring

themselves or other persons actually present. Active resistance includes physically evasive movements to defeat an officer's attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into custody. Active aggression consists of a threat or overt act of an assault (through physical or verbal means), coupled with the present ability to carry out the threat or assault, which reasonably indicates that an assault or injury to any person is imminent. NYPD Patrol Guide, Procedure 221-08 (BR17).

Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. NYPD Patrol Guide, Procedure 221-01 (BR08).

§ 87(2)(g)

Therefore it is recommended that **Allegation C** be closed as **unfounded**.

§ 87(2)(g)

§ 87(2)(b)

Therefore it is recommended that **Allegation D** be closed as **unsubstantiated**.

#### **Civilian and Officer CCRB Histories**

- This is the first CCRB complaint in which § 87(2)(b) has been a party (BR18).
- PO Lara has been a member of the service for three years and this is the first complaint in which he has been a subject.
- PO Ramon has been a member of the service for six years and has been a subject in two CCRB complaints and two allegations, of which one was substantiated:
  - #201509544 involved a substantiation entry and search allegation against PO Ramon. The Board recommended Formalized Training, and the NYPD imposed command level instructions. § 87(2)(g)

**Mediation, Civil and Criminal Histories**

- This complaint was unsuitable for mediation.
- As of November 26, 2018, the NYC Office of the Comptroller had no record of a Notice of Claim regarding this incident (BR19).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

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Squad No.: 5

Investigator: \_\_\_\_\_  
Signature Print Title & Name Date

Squad Leader: \_\_\_\_\_  
Signature Print Title & Name Date

Reviewer: \_\_\_\_\_  
Signature Print Title & Name Date